

IN THE APPELLATE COURT OF ILLINOIS
SECOND DISTRICT

THU TRANG NGUYEN and
PHILIP J. FELDSINE,
Petitioners–Appellants,

v.

ILLINOIS DEPARTMENT OF HUMAN SERVICES, et al.,
Respondents–Appellees.

Appeal from the Circuit Court of Lake County
No. 2025 CH 273
Hon. Daniel L. Jasica, Judge Presiding

APPELLANTS' BRIEF AND ARGUMENT

NATURE OF THE CASE

This appeal arises from the dismissal of Petitioners' complaint for injunctive and related relief on the ground that they failed to exhaust administrative remedies in a pending IDHS vocational rehabilitation appeal. Petitioners contend that exhaustion is excused under long-recognized exceptions where the agency lacks authority to grant the relief sought, the process has become patently useless and prejudicial, and the tribunal is structurally biased and operating ultra vires.

1. JURISDICTIONAL STATEMENT

This appeal is taken from the Circuit Court of Lake County's November 14, 2025 order dismissing Petitioners' complaint for injunctive relief in Case No. 2025 CH 273 on the ground of failure to exhaust administrative remedies (A6). That order disposed of all claims then pending and is a final judgment (A7). Petitioners filed a timely notice of appeal pursuant to Illinois Supreme Court Rules 301 and 303 (A8). Accordingly, this Court has jurisdiction over this appeal pursuant to Illinois Supreme Court Rules 301 and 303.

2. ISSUES PRESENTED FOR REVIEW

3. Exhaustion / Authority Issue

Whether the Circuit Court erred in dismissing Petitioners' complaint for failure to exhaust administrative remedies where the undisputed record shows that the IDHS hearing tribunal has expressly disclaimed authority to adjudicate Petitioners' core ADA,

Rehabilitation Act, IHRA, and promissory-estoppel claims or to grant the equitable relief sought (A6; A7; A57; A68).

4. **Timeliness / Irreparable Harm Issue**

Whether exhaustion is excused where the administrative process has failed to comply with 60-day hearing and related timeliness safeguards (A67; A79), has repeatedly reset proceedings instead of issuing a decision (A443; A444), and has already caused concrete, irreparable harm to Petitioners' education, housing, employment, and health (A59; A105; A114; A432; A441; A458).

5. **Structural Bias / Adequacy Issue**

Whether the administrative remedy is legally inadequate and exhaustion is excused where the tribunal is overseen by a Chief ALJ who simultaneously serves as Deputy General Counsel for the respondent agency (A480; A517), employs "reset" letters to nullify hearings after adverse admissions (A443; A444; A458), and operates amid FOIA and record-production practices that undermine the integrity of the record (A903; A947).

6. **Unaddressed Motions Issue**

Whether the Circuit Court erred in dismissing the action without adjudicating Petitioners' pending motions for TRO and case management (A432; A881), Rule to Show Cause and preservation (A883), disqualification (A944), sanctions, and adverse inference (A947), which went directly to the adequacy and integrity of the administrative remedy (A6; A7).

SUMMARY OF ARGUMENT

- **Tribunal lacks power over core claims.** The IDHS hearing officer has expressly disclaimed authority to adjudicate ADA, Rehabilitation Act, IHRA, and promissory-estoppel claims, and can only affirm, reverse, or remand a VR benefits decision (A57; A68; A331; A332). Under long-standing Illinois precedent, including *Canel v. Topinka*, *Castaneda*, and *Allphin*, exhaustion is not required where the agency cannot provide the relief sought or where the issues are purely legal.
- **Process has become "patently useless."** Petitioners' hearing request has languished far beyond the 60-day regulatory timeframe, multiple hearings have been nullified by "reset" letters, and each reset inflicts additional educational, financial, and psychological harm (A6; A57; A67; A332; A438; A439; A443; A444). Under *Beahringer* and related cases, exhaustion is excused where pursuing the administrative route would be "patently useless" and cause prejudice (A6).
- **Structural and systemic defects.** The Chief ALJ's dual role as Deputy General Counsel (A480; A517), combined with serial resets following adverse admissions (A443; A444; A458), FOIA irregularities (A906), misdirection of ADA grievances (A426; A451), language-access failures (A440), and exclusion of Ms. Nguyen's authorized representative (A441; A443; A444), presents a systemic failure and ultra vires conduct akin to that addressed in *Bio-Medical Laboratories*, *Pinkston*, *Board of Education*, *Slepicka*, and *Goral* (A936). The remedy is structurally inadequate (A6).

- **Circuit Court misapplied exhaustion and left key motions unresolved.** By insisting on exhaustion in this posture, the Circuit Court placed Petitioners in “jurisdictional limbo” and dismissed without ruling on preservation, disqualification, sanctions, and adverse inference motions that directly concerned the integrity of the administrative process (A6; A889; A944; A947). The case should be reversed and remanded for a merits hearing and rulings on those motions (A7).

I. INTRODUCTION

This appeal challenges the Circuit Court’s November 14, 2025 order dismissing Petitioners’ complaint for injunctive relief on the ground that Petitioners “failed to exhaust administrative remedies” (A6). The court held that Petitioners must continue in IDHS Appeal No. 2500675730 and that any ADA-based harms “may be moot” if vocational rehabilitation (VR) funding is eventually awarded (A6).

Petitioners submit that this conclusion was legal error (A6). The record reflects that the IDHS tribunal (1) has repeatedly and expressly disclaimed authority to adjudicate Petitioners’ core federal claims or grant the equitable relief sought (A57; A68), (2) has failed to comply with mandatory timelines and procedural safeguards (A67; A440; A441; A443), and (3) exhibits structural and procedural defects that, in Petitioners’ view, undermine any reasonable expectation of a fair, reviewable result (A458; A480; A517; A935). Petitioners invoke settled Illinois law for the proposition that exhaustion is not required where the administrative remedy is patently futile or inadequate.

Furthermore, the record reflects statements by IDHS leadership about the scope of relief available. Bureau Chief Andrew Webb told legislative staff that the VR administrative regulations “do not provide us with discretion to be able to provide what they are demanding” (A29). Assistant Bureau Chief Heather Speth wrote that IDHS has “no way to pay for transportation expenses upfront,” that it is “unable to do advance payments” other than limited mileage-only payments, and that Uber-based transportation must be provided, if at all, only on a reimbursement basis (A41; A42). By August 21, 2025, Petitioners had specifically identified an existing Illinois rideshare-voucher model—the Rideshare Access Program (“RAP”)—as a feasible template for advance Uber-based transportation support, explaining that “the transportation authority, which also receives state and federal funds, already does this as a disability accommodation as part of the Rideshare Access Program (RAP)” and that “it is absurd to think that the Department of Human Services, Disability Rehabilitation Department cannot do the same” (A56). Yet neither Webb, Speth, Patrick, nor OGC adopted or piloted that mechanism, and Petitioners cite continued statements in the record that IDHS had “no mechanism” other than post hoc reimbursement (A48). The Hearing Officer stated on the record that she has “no authority... to make any rulings with regards to violations of the ADA... [and] whether the rules are legal or not,” which “would have to be taken outside of this venue” (A57), later formalizing in an order that the tribunal “cannot enforce other laws such as FOIA or various disability statutes” and is “only able to affirm, reverse, or remand” a VR determination (A68; A332). The Bureau’s hearing notice tells VR customers that they “cannot appeal... grievances

filed under the Americans with Disabilities Act” or “issues challenging the legality of the DRS rules” (A68; A80; A94). Petitioners cite these disclaimers and related record entries throughout (A57; A67; A74; A87; A121; A459).

Petitioners identify the following record features as relevant to their request for injunctive relief (A476; A516; A944):

- A tribunal that has formally disclaimed authority to adjudicate Petitioners’ core ADA, Rehabilitation Act, promissory-estoppel, and IHRA claims (A57; A67; A459);
- Overseen by a Chief Administrative Law Judge who simultaneously serves as a Deputy General Counsel for IDHS (A480; A517; A696; A944);
- Supported by an Office of General Counsel that controlled responses to Petitioners’ FOIA requests, the only practical discovery mechanism available, and then (as Petitioners allege) used FOIA in ways that included constructive denials, allegedly misleading “no records” responses, and timing responses so that records would arrive after the Bureau of Hearings’ three-day evidence deadline (A108; A311; A441; A485; A575; A906; A931);
- Staffed by a Hearing Officer (Karen Ottaviani-Roelle), who, immediately after Petitioners described the financial hardship and risk to Mr. Feldsine’s job and their family’s livelihood, responded in a manner Petitioners describe as an audible scoff and laughter captured on Petitioners’ independent audio recording, pre-emptively denied all future subpoenas for key witnesses, and then participated in a pattern of “Reset Letters” that, in Petitioners’ view, functioned to nullify hearings after significant admissions were made on the record (A59; A344; A379; A441; A443; A444);
- A “non-involvement” determination that Petitioners cite as inconsistent with documentary record entries, including emails in which Assistant Bureau Chief Speth and Bureau Chief Webb copied senior officials including Director Patrick on substantive communications about Ms. Nguyen’s IPE, hardship exception, and appeal route, including the August 26, 2025 “FW: IPE with Added Transportation Notes” exchange where Mr. Feldsine challenged being steered into a process that disclaims ADA jurisdiction (A424; A426; A440; A499; A561); and
- Coupled with communications involving Bureau Chief Andrew Webb, Assistant Bureau Chief Heather Speth, and DRS Director Rahnee Patrick that Petitioners cite in support of their position that the hardship-exception process was delayed until after Ms. Nguyen lost her housing, that Petitioners’ exception form was altered internally before being routed to the Bureau Chief, and that IDHS did not implement the approval as Petitioners understood it, including Patrick’s “Thank you for your extraordinary patience” email during the housing deadline period (A113; A154; A401; A407; A423; A458; A842).

Meanwhile, Petitioners cite the record as reflecting the following harms:

- The loss of a substantial portion of an academic year in a rare graduate program to become a teacher for the blind (A105; A441; A458);

- The loss of housing and prolonged family overcrowding (A114; A936);
- A substantial reduction in Mr. Feldsine's bi-weekly income (from approximately \$1,059.72 to \$875.82, with five docked days recorded in November 2025 alone) (A16; A18);
- Two separate psychological referrals for Mr. Feldsine (including to a psychiatrist for medication) and psychological referrals for Ms. Nguyen (A105; A441; A939); and
- Escalating risk to Mr. Feldsine's public-school job because the agency has refused to issue the summons his employer requires to excuse or classify his absences as paid time off (A104; A438; A458; A472).

Petitioners argue that the exhaustion doctrine does not require litigants to remain in a forum that has stated it cannot decide the key issues, that is structurally entangled with the agency's litigation arm, that undermines the integrity and availability of evidence, and that continues to inflict irreparable harm (A57; A68; A114; A423; A441; A443; A458; A471; A480; A485; A517; A906; A939; A944). Petitioners respectfully ask this Court to reverse the dismissal, hold that the futility exception applies, and remand for a hearing on the merits of Petitioners' request for injunctive relief (A6).

II. STATEMENT OF FACTS AND PROCEDURAL BACKGROUND

A. Underlying dispute and hardship

Petitioner Thu Trang ("Chloe") Nguyen is a legally blind individual with limited English proficiency who was accepted into a rare graduate program for teachers of the visually impaired (A105; A440; A441; A458). She required VR services from IDHS–DRS to attend safely, including housing for the duration of her education and transportation (A113; A936). As her authorized representative, Petitioner Feldsine worked with DRS to secure those supports (A104; A122).

DRS initially committed in writing to fund housing based on the applicable HUD fair-market rate, according to the number of bedrooms selected in the unit Ms. Nguyen chose (A84; A120; A256–257; A263 (Video/Audio reference time stamp: 01:04:21)). Petitioners relied on that commitment while searching for housing (A106; A113). Because of Ms. Nguyen's lack of U.S. credit history and income, weeks of searching produced only one landlord willing to offer a contingent lease (A114; A938). That landlord was prepared to sign a lease for a three-bedroom townhouse on the condition that IDHS follow through on its written HUD FMR commitment (A114; A262–263). When IDHS backtracked from that promise, that only viable lease, ready to sign, was lost (A114; A936).

Furthermore, DRS reversed course and limited support to a one-bedroom rate (A404; A431; A266 (Video/Audio reference time stamp: 01:04:21, 01:08:43,679)), and denied Ms. Nguyen's hardship exception request without any written undue-hardship analysis (A103; A106 ¶¶ 23–24;

A108; A431). This forced Ms. Nguyen to choose between adequate housing and transportation to her program when both were necessary for attendance, depriving her of services in the most integrated setting appropriate and triggering the current dispute (A114–115; A431).

Petitioners cite a broader position reflected later in the record: that the governing statutes permitted IDHS to fund either housing or transportation, but not both (A29; A521). Petitioners dispute that position and cite IDHS’s hardship-exception regulation, 89 Ill. Adm. Code § 590.680, which authorizes exceptions where “demonstrated hardship” exists (A111; A307; A424). At the same time, IDHS unilaterally limited any housing support to a one-bedroom rate despite earlier HUD-based assurances and refused to recognize Mr. Feldsine as Ms. Nguyen’s documented medically necessary caregiver in all proceedings and decisions including Ms. Nguyen’s Individualized Plan for Employment (IPE) in spite of having received medical documentation to the contrary (A29; A84; A142; A471; A926). Petitioners cite this as relevant to their position that the plan and proposed remedies were structured as if he did not exist (A105; A299).

On July 24, 2025, Petitioners submitted a “demonstrated hardship” request directly to DRS Bureau Chiefs Andrew Webb and Heather Speth, warning that Ms. Nguyen faced imminent loss of secured housing by an August 4 move-in deadline and faced loss of enrollment, and reminding them that in a similar recent situation they had each independently called crisis lines because of the impact of a comparable bureaucratic failure (A37; A55; A114; A405; A408; A588). That communication placed leadership on express notice of Petitioners’ vulnerability (A37; A114; A438). At that point, Petitioners had not been told that a formal § 590.680 hardship-exception process existed, and no exception form had been provided; the only “remedy” offered on July 25 was an appeal that, as Petitioners describe it, could not avert an August 4 loss of housing (A29; A58; A106). Since then, both Petitioners have experienced medically documented stress-induced physical and psychological ailments, which were submitted as evidence in the Circuit Court (A105; A441; A939). Petitioners’ hardship-exception efforts proceeded in two stages: their first formal request was denied outright by a standardized form on which Bureau Chief Webb simply checked “The exception request is denied,” without findings of fact or explanation on the face of the form, and their second request, altered internally by Speth before it reached the Bureau Chief, was later approved by Webb; Petitioners cite the record as reflecting that IDHS nevertheless did not implement the approval as Petitioners understood it (A41; A42; A103; A106; A373; A423; A458; A653).

The standardized form returned to Petitioners reflects the denial only by a checked “The exception request is denied” box, and does not set out written findings or an explanation of how the “demonstrated hardship” standard in 89 Ill. Adm. Code § 590.680 was applied on the face of the form (A103; A108; A111; A426; A434). Petitioners cite Illinois and federal authorities regarding notice and explanation of adverse determinations, including 5 ILCS 100/10-50(a), 89 Ill. Adm. Code 508.150(a), and 34 C.F.R. § 361.50(a), (b)–(c); 34 C.F.R. §§ 361.43(b), 361.57(b)(1)–(4), and related case citations (A426; A116; A405). Petitioners cite these authorities in support of their position that a checked-box denial, without an articulated basis, leaves affected individuals and reviewing courts unable to discern the basis for the denial (A103; A108; A111; A426; A434).

By August 21, 2025, Petitioners had not only identified a feasible voucher-based accommodation modeled on the Rideshare Access Program (RAP), but had presented that mechanism—an Uber-style business account and voucher system already used by Illinois’s own Rideshare Access Program for people with disabilities—directly to IDHS leadership and counsel, explaining that “[t]he transportation authority, which also receives state and federal funds, already does this as a disability accommodation... It is absurd to think that the Department of Human Services, Disability Rehabilitation Department cannot do the same” (A53; A55; A56).

Hardship exception chronology (record sequence)

- On July 23, 2025, Petitioners spoke with Assistant Bureau Chief Heather Speth, explaining that Ms. Nguyen faced an August 4 housing deadline (A114; A400; A432; A924). Speth said she would consult with the Bureau Chief, whom the record reflects to be Bureau Chief Andrew Webb (A115; A453).
- On July 24, Petitioners emailed Assistant Bureau Chief Speth and Bureau Chief Webb, giving explicit notice of “demonstrated hardship” and “imminent loss of secured housing by an August 4, 2025 move-in deadline” (A37; A114; A405; A432; A938).
- Speth issued a denial and directed Petitioners toward an appeal (A29; A58; A106; A108; A431; A927).
- For roughly 15 days (July 24–August 7), Petitioners cite the record as reflecting that IDHS did not provide them with a hardship-exception form or direct them to a formal § 590.680 exception mechanism, while Ms. Nguyen’s August 4 lease deadline came and went and the housing opportunity was lost (A57; A104; A108; A113). In her July 25 follow-up email, Speth quoted 89 Ill. Adm. Code § 590.670(d) to justify the “whichever is less” limitation on housing and transportation, but stopped her quotation just before the immediately following clause, “unless there is a demonstrated hardship,” and Bureau Chief Webb told legislative staff that “our VR administrative regulations do not provide us with discretion to be able to provide what they are demanding” (A29; A404; A431). Petitioners cite these communications as relevant to their understanding of what remedies were available during the housing deadline period (A57; A431).
- On August 7, 2025, after Petitioners escalated to legislative offices, Speth acknowledged in writing that an exception request “could be worked on” (A400).
- Petitioners completed a hardship exception form on August 8, 2025 (A411; A434; A932). On August 14, 2025, Bureau Chief Webb emailed that DRS could not agree to the terms of the request and would only be willing to fund transportation under his reading of the regulations (A836), and on August 15, 2025, he formally denied the exception, stating, “Your exception request is denied” (A893). The official form returned to Petitioners reflects that denial only by a checked “The exception request is denied” box (A103; A108).
- Petitioners were then told to submit another request, and did so (A434; A898; A932).

The standardized hardship-exception form reflects that Section 1 is reserved for “THE CUSTOMER OR THEIR REPRESENTATIVE” to describe the specific exception requested and the reasons it is necessary (A108; A428; A932). Section 2 is reserved for “THE DRS REHABILITATION COUNSELOR” to indicate whether the counselor supports or opposes the request and to cite applicable rules (A108; A428; A932). Section 3 is reserved for the Bureau Chief, who must then check one of three boxes—“the exception request is approved,” “the exception request is denied,” or “the following revision or clarification is required”—and sign and date the decision (A108; A428; A932). In Petitioners’ version of the form, Section 1 requested advance weekly transportation payments and included “under duress” and “non-waiver” language, and referenced IDHS’s reversal of its written housing commitment (A434–435). In the version routed to Bureau Chief Webb (A428), Speth removed the “under duress” and “non-waiver” language from Section 1 while leaving the core financial request—weekly advance transportation payments—intact, completed the counselor’s portion herself in Section 2, and forwarded the altered form to the Bureau Chief (A423–424; A458).

Webb signed Section 3 and checked the box stating that “the exception request is approved,” rather than the box indicating that revisions or clarifications were required (A424). Speth then informed Petitioners that IDHS could not provide advance transportation payments and characterized the approved payment mechanism as something the agency could not authorize because it lacked a mechanism to do so (A41; A42; A48). Petitioners cite this as reflecting that IDHS did not implement the approval as Petitioners understood it and did not restore the promised housing level or transportation (A51; A456).

On August 21, 2025—four days before classes began—Petitioners sent an email entitled “URGENT WARNING: NGUYEN IPE BREACH, IMMINENT IRREPARABLE HARM, ACADEMIC FAILURE” to Ms. Nguyen’s rehabilitation counselor, Bureau leadership, the DRS Director, the IDHS Deputy General Counsel, and other senior officials (A55). In that message, Petitioners (1) identified inconsistencies between the revised IPE and Ms. Nguyen’s hardship exception as Petitioners understood it, including omission of Uber/driver options and the imposition of “one round trip per day” and GPA conditions (A55); (2) advised that, absent implementation by the end of that week, Ms. Nguyen would be forced to drop classes and risk academic failure due to attendance policies (A56); and (3) proposed mechanisms—such as a temporary escrow arrangement or a rideshare-voucher model patterned on RAP—to implement the exception without out-of-pocket cost to her (A56). Petitioners cite the record as reflecting that IDHS did not adopt these options, and cite subsequent academic harm (A59; A105; A441).

Petitioners cite the record as reflecting that prior to Ms. Nguyen’s loss of housing and the filing of her appeal they were not provided a hardship form or directed to submit hardship paperwork, despite Speth’s knowledge of the circumstances (A106; A431; A925–926). Petitioners cite this sequence as central to their futility theory and their characterization of how the hardship mechanism functioned in practice in this case (A106; A458; A947). Internal emails obtained via FOIA reflect that on July 25, 2025, after Representative Bob Morgan’s office contacted IDHS about Ms. Nguyen’s case, Bureau Chief Webb told legislative staff that he would “get back... early next week” and to “please enjoy the weekend,” while the August 4 move-in deadline was

approaching (A24; A29). Petitioners cite that timing and sequence as relevant to the housing-loss outcome (A58; A106; A114).

B. The administrative appeal and repeated resets

Petitioners filed Administrative Appeal No. 2500675730. From its inception, Petitioners cite procedural obstacles reflected in the record:

Hearing notice referrals and contact information (A62; A91; A380; A438; A935). Hearing notices advised that Petitioners “may have the right to the assistance of the Illinois Department on Aging’s Home Care Ombudsman Program” and directed them there for help (A91; A380). That ombudsman has no jurisdiction over Ms. Nguyen’s VR dispute (A105; A441; A823). In earlier phases, Petitioners were also given a phone number for the federally mandated Client Assistance Program that connected to a commercial sex hotline (A62; A75; A106; A438; A935). Minutes before the close of business on the eve of a hearing, IDHS sent Petitioners an ombudsman referral letter steering them to an ombudsman that lacks VR jurisdiction (A380; A823), while warning that failure to secure ombudsman assistance in time would not be grounds to delay or reschedule the hearing (A380).

Language-access / notice language (A24; A440; A478; A465). Petitioners cite the record as reflecting that multiple hearing notices were not provided in Vietnamese; instead, notices arrived in English (and, at times, Spanish) only (A24; A440; A478). At the November 6 hearing, when Petitioners stated that Ms. Nguyen had “not received a single notice regarding these proceedings in Vietnamese,” the Hearing Officer responded: “There’s nothing in the administrative rules that require the notices for our hearings to be in Vietnamese” (A58). Petitioners cite 5 ILCS 100/10-25(b)(6) and 89 Ill. Adm. Code § 510.40(a) regarding language-access requirements and understandable appeal-rights notice (A465).

Service/representation format in correspondence (A105; A441; A443; A444; A455). Petitioners cite record entries reflecting that communications and notices treated Mr. Feldsine, the authorized representative, as a “CC” rather than receiving direct service (A105; A441). Reset letters were addressed to “THU NGUYEN,” with “CC: Philip, Feldsine” appearing in a footer (A443; A444). Assistant Bureau Chief Speth responded to Ms. Nguyen’s emails while ignoring contemporaneous inquiries from Mr. Feldsine; on August 26, 2025, he asked, “Are you attempting to cut her authorized representative out of this process?” (A455). Petitioners cite other emails directed to Ms. Nguyen alone during the housing and transportation dispute (A448; A455). Feldsine challenged the agency’s refusal to implement the approved hardship exception as Petitioners understood it, including that the “exception request was approved with the advanced payment provision included in Section 1” (A45), that the “Chief... approved and signed the request as is, without checking the box requiring a revision” (A47), and that “Bureau Chief Webb signed and approved an Exception Request that included a non-negotiable provision for a weekly advance payment” (A51).

The same hearing notice states that VR customers are entitled to a hearing within 60 calendar days of the request, absent a written agreement to extend (A67; A79).

On August 26, 2025, Petitioners emailed about the hearing notice's ADA-disclaimer language and asked how ADA-grievance issues would be addressed and what the correct ADA grievance process was (A450–451). Petitioners cite the record as reflecting that Speth, Webb, and OGC did not identify an alternative procedure in response (A450–451). In that August 26 message, Mr. Feldsine attached the hearing notice, highlighted its statement that grievants “cannot appeal... grievances filed under the Americans with Disabilities Act” and “issues challenging the legality of the DRS rules,” and asked Ms. Speth: “How exactly are these issues going to be addressed in a process that refuses to hear items relating to the legality of your organization’s rules, services and procedures that are required by law and regulation, and grievances related to the Americans with Disabilities Act?” (A451). Director Rahnee Patrick was included in the “To” line on that email (A456). Petitioners cite these entries in support of their characterization of a “circle of no relief” and their position regarding the function of an ADA grievance process in practice in this matter (A57–58).

Petitioners cite Title II grievance-procedure authority (28 C.F.R. § 35.107(b)) and related argument authorities in support of their position that routing ADA grievances into a VR appeal that disclaims ADA jurisdiction is structurally inadequate for exhaustion purposes (A431–432; A941; A57; A68; A809; A937; A944–946). Petitioners cite these authorities as part of the legal analysis developed in Argument (A937; A944–946).

September 2, 2025 hearing (A937). A hearing went forward despite Petitioners’ motion to vacate based on Mr. Feldsine’s documented medical incapacity, which Petitioners cite as never ruled upon (A937). The Hearing Officer, Karen Ottaviani-Roelle, stated she was “new to this appeal” and declined to rule on pending motions, deferring them until after the evidentiary record closed (A457). Petitioners cite the record as reflecting that IDHS did not provide an effective reader accommodation for Mr. Feldsine’s documented reading disability (A457). Petitioners cite the transcript/audio entries as reflecting that the hearing proceeded for approximately two hours and that testimony was taken, including testimony regarding the hardship exception (A451; A457). During this hearing, Assistant Bureau Chief Speth stated on the record that Petitioners’ “original exception request... was altered and sent back... because there were some requests within it that far exceeded what we would be able to accommodate,” and that the later response reflected “an approval of that exception” (A458). Petitioners cite the record as reflecting that the request was routed internally before final denial (A446; A448). Petitioners cite a side-by-side comparison of Petitioners’ submission (A435) with the version routed to Bureau Chief Webb (A424; A429) reflecting that Speth left intact the core financial request for advance weekly transportation payments and removed “under duress” / “non-waiver” language and related context (A424; A429; A435). Speth later informed Petitioners by email that the advance-payment mechanism was something IDHS had no means to authorize (A42; A155). Petitioners cite that in a later written order, the Hearing Officer stated that “Grievant’s Motion to Vacate the September 2, 2025 hearing date was granted on the record...,” and Petitioners cite this as inconsistent with the transcript/audio entries they reference (A461; A473;

A457–458; A937; A945). Three days after this testimony, the Bureau issued a “Reset Letter” purporting to nullify the September 2 hearing (A443).

November 6, 2025 hearing and second reset (A57; A444). At a subsequent hearing, Petitioners raised violations of the ADA and Rehabilitation Act (A57–58). In response, the Hearing Officer stated on the record: “I have no authority... to make any rulings with regards to violations of the ADA... whether the rules are legal or not, all that is outside of this tribunal” (A57). She confirmed in writing that the tribunal “cannot enforce other laws such as FOIA or various disability statutes” and is “only able to affirm, reverse, or remand the DRS determination on Grievant’s benefits” (A471). Petitioners cite that shortly after they filed that admission in the Circuit Court, IDHS issued a second Reset Letter nullifying the November 6 proceeding (A14; A444).

At the November 6 hearing, the Hearing Officer also:

- announced that she would not issue subpoenas for senior officials she had already deemed “not involved,” and would not review new evidence to the contrary, which Petitioners cite as a denial of future subpoena efforts regardless of new evidence (A58; A386);
- responded to Petitioners’ statement of financial hardship in a manner Petitioners describe as an audible laugh/scoff, captured on Petitioners’ audio recording of the hearing, immediately after Mr. Feldsine explained that repeated hearings and the refusal to issue a summons were jeopardizing his public-school job (A58; A344); and
- stated later in the hearing that she had “reviewed all the evidence” underlying her October 30 “non-involvement” findings, which Petitioners cite alongside transcript entries where she stated she was “still looking,” asked “Where is that at?,” and referenced documents being forwarded (A184; A235; A386).

Petitioners cite the subpoena rulings as part of the same procedural loop (A937; A945). In her October 30 order, the Hearing Officer found that high-level officials Petitioners sought to subpoena were “not involved” and reasoned their only connection was that Mr. Feldsine had copied them on emails (A471). Petitioners cite record entries they believe contradict that characterization, including Patrick’s direct email interactions (A830; A839) and FOIA records reflecting communications among senior officials about the case on July 24, 25, 28, August 7, 13, and 21, 2025 (A784; A794; A797; A807; A814). Petitioners cite FOIA email logs and messages produced before November 6 as reflecting circulation of Ms. Nguyen’s “URGENT FORMAL APPEAL” and related updates among senior officials, and forwarding of case communications up the chain to Patrick, the Deputy Governor, and IDHS counsel (A71–75; A827; A1500). At the November 6 hearing, Petitioners advised the Hearing Officer that FOIA-produced logs contradicted the “not involved” finding and asked her to review them before ruling on renewed subpoena requests (A58; A385–386). Petitioners cite that the Hearing Officer stated she had already “reviewed all the correspondence” and had “already made [her] ruling,” refused to look at new FOIA records on the ground that “anything with regards to FOIA” was outside the tribunal’s jurisdiction, and proceeded to scheduling (A59; A386–387; A389).

Petitioners cite the result as a subpoena ruling premised on an incomplete communications record without an internal correction mechanism (A386; A471; A921).

Petitioners cite this “second reset” sequence—ADA authority disclaimer, subpoena rulings, Petitioners’ description of demeanor, and a Reset Letter (A57–58; A444)—as relevant to their futility arguments.

Third reset following timeliness objection (A67). Petitioners cite the record as reflecting that when they pointed out the appeal had exceeded the 60-day hearing timeframe in the regulations and hearing notice—without Petitioners signing a written waiver—IDHS issued another reset rather than issuing a decision (A67; A938). A December 9, 2025 hearing is scheduled more than four months after Petitioners’ July request (A21; A22; A113). Petitioners cite this third reset letter as an attempt to restart the clock rather than decide the matter (A67; A113; A348).

At the time Petitioners sought relief in the Circuit Court, Petitioners cite that they had not been provided official audio recordings or transcripts of the September 2, November 4, November 6, or November 17 settings, despite requests (A104; A120; A441). Petitioners cite this as especially concerning given that each reset followed admissions they characterize as damaging (A57; A458).

C. Circuit Court proceedings

Faced with an administrative process that issued reset letters after hearings, disclaimed authority over ADA/related claims, and exceeded timelines, Petitioners filed in the Nineteenth Judicial Circuit seeking a Temporary Restraining Order and Writ of Prohibition to halt the administrative proceedings and preserve the record (A936; A947). On November 6, 2025, the Circuit Court denied interim relief and marked the case “closed,” finding Petitioners must exhaust administrative remedies because the appeal was still pending (A6; A7; A832). After Petitioners submitted additional evidence—including the Hearing Officer’s ADA admission and the reset practice reflected in the record—the court treated that filing as a motion to reconsider and denied it on November 14, 2025, reaffirming that “these alleged ADA violations may be moot if Petitioners obtain relief through their administrative appeal” (A6; A7). Petitioners then filed a notice of interlocutory appeal under Rule 307 from the denial of interim relief, believing the time to appeal had been tolled by the circuit court’s sua sponte reconsideration; this Court dismissed that interlocutory appeal without prejudice (A15; A833). Petitioners now bring this appeal as of right from the Circuit Court’s November 14, 2025 final dismissal order pursuant to Illinois Supreme Court Rules 301 and 303 (A8).

D. Structural conflict and high-level dismissiveness

The structural conflict at IDHS is not theoretical (A1131). Chief ALJ Richard Madison serves as both head of the Bureau of Administrative Hearings (BOH) and a Deputy General Counsel in the same Office of General Counsel (OGC) that:

- directed FOIA timing and issued an “improper” extension on one of Petitioners’ FOIA requests (A1152; A1437);
- at least once denied the existence of records later shown to exist (A4047; A4146); and
- coordinated the ESI searches related to Petitioners’ legislative escalations and settlement demands, as well as responses when Petitioners threatened to complain to the Attorney Registration and Disciplinary Commission (ARDC), and when they communicated with legislators and the Governor’s Office (A1497; A1500).

Petitioners cite this dual role as having practical consequences in this case (A1128; A1405). As detailed in Petitioners’ Motion to Disqualify (A476; A944), Chief ALJ Madison issued a directive that BOH hearing officers would not issue pre-hearing rulings on motions, including motions to define issues, compel witnesses, or preserve evidence (A1128; A1409). Petitioners cite the timing of that directive and related communications in support of their structural-bias arguments (A1137; A1497; A575–576; A597; A609; A696). Bureau Chief Damita Buffington and the assigned Hearing Officer, Karen Ottaviani-Roelle, enforced that policy by refusing to rule on motions before proceeding to hearings, including after Petitioners raised structural and due-process challenges (A457; A458; A1032; A1035; A695). Petitioners cite the effect as a rule that motions challenging the process were not decided within the Bureau before hearings proceeded (A1128; A1409).

These issues are reflected in Madison’s case-specific emails (A479; A516). On August 20, 2025, writing with an IDHS signature block “Deputy General Counsel & Chief Administrative Law Judge,” Madison responded to Petitioners about their vocational-rehabilitation appeal, invoked 89 Ill. Adm. Code 510.105(e), set a September 2, 2025 hearing date, and stated that subpoenas and “other preliminary matters” would be taken up at that hearing rather than through pre-hearing rulings (A516). He apologized for having previously provided incorrect Client Assistance Program information and stated that this “oversight” had been corrected, copying the Bureau of Hearings address as well as Director Patrick, Deputy General Counsel Mulcrone, Bureau Chief Webb, and Patricia Brown (A516; A517). The next day, after Petitioners filed a “FORMAL MOTION FOR MANDATORY DISQUALIFICATION OF CHIEF ALJ MADISON & DEMAND FOR IMPARTIAL TRIBUNAL,” Madison emailed again to “acknowledge receipt” and reiterated that, under 89 Ill. Adm. Code 510.105(e), the case “must be heard” on September 2 and that motions, including the disqualification motion, would be presented at that hearing (A476; A479). Petitioners cite these entries as reflecting that the same official serving in OGC also controlled scheduling and handling of disqualification objections in this appeal (A480; A517).

In one chain, the hearings coordinator sent Chief ALJ Madison a procedural history of Ms. Nguyen's appeal, and Madison, writing as "Deputy General Counsel & Chief Administrative Law Judge," told internal leadership that because this was an "active appeal" he had instructed staff to "continue the appeal at their request (for a second time) and that we would schedule it again in the normal course of business" (A560). General Counsel Amy Crawford replied to Madison, Deputy General Counsel Mulcrone, and other OGC attorneys, marking the message "Importance: High" and "confirming/reiterating we will not be discussing the merits" (A609). Petitioners cite this exchange as showing monitoring and direction of handling of the appeal by OGC while the Chief ALJ controlled scheduling and procedural rulings (A480; A560; A609).

Petitioners cite their attempts to invoke the Office of the Executive Inspector General (OEIG) (A697–700). Petitioners filed complaints with OEIG alleging fraud, retaliation, and misuse of authority by IDHS officials involved in this matter (A697–700). OEIG declined to investigate and issued letters stating the complaints would be referred back to IDHS for "appropriate action" (A698; A700). Petitioners cite this referral structure as part of their "closed loop" concerns (A698; A700; A937; A945).

FOIA logs produced after follow-up requests (A701–783) reflect communications Petitioners cite as inconsistent with the Hearing Officer's "non-involvement" findings (A471; A701–783). Petitioners cite logs reflecting communications involving IDHS General Counsel Amy Crawford and Deputy General Counsel Thomas Mulcrone concerning the active appeal (A594; A606). Petitioners cite entries reflecting communications involving Secretary Dulce Quintero (A798; A810; A817), Deputy Governor Grace Hou (A784; A817), the Governor's General Counsel Ann Spillane (A704; A817), DRS Director Rahnee Patrick (A784; A817), and Assistant Secretary for Programs John Schomberg (A704; A784; A798; A809; A810; A817; A826). Petitioners cite that OGC initially asserted no additional responsive records existed (or withheld them) regarding legislative contacts, despite confirmation from Rep. Morgan's office (A826; A931), and cite an internal email from Tiffany Blair to Secretary Quintero and Assistant Secretary Schomberg reflecting that Leader Morgan contacted Schomberg (A810). Petitioners cite the sequence of follow-up requests and later production (A891) in support of their concerns about the visibility of the paper trail (A937).

Petitioners cite additional record evidence regarding Director Patrick (A471). On August 26, 2025, in the chain "FW: IPE with Added Transportation Notes," Speth corresponded with Ms. Nguyen about the revised IPE while copying Director Patrick, and Mr. Feldsine responded in that chain, again with Patrick on the line, objecting to being directed into an appeal process whose hearing notice disclaimed ADA jurisdiction and asking for "the correct appeals process" if that forum was not it (A446; A450–451). Petitioners cite these entries as part of their position that Patrick and other senior officials had substantive visibility into the dispute (A446–456; A471; A473).

In the August 8 email, Webb stated that "to my knowledge you will not be receiving any response from Director Patrick or OGC," while copying Patrick, Assistant General Counsel Mulcrone, and HHS Deputy Governor Grace B. Hou (A827). Petitioners cite this as relevant to

their position that senior officials were on notice while later being treated as “not involved” for subpoena purposes (A431; A459; A471; A830).

Counsel and appearances sequence (including Petitioners’ characterization) (A407; A829)

On August 8, 2025, Bureau Chief Andrew Webb sent an email regarding “Transportation Support Missing from New IPE” stating that “decision making responsibility has been delegated” to his team and that “we are not represented by counsel, in the appeal or otherwise. (This may change should you retain counsel at some point.)” (A407). In that same message, Webb stated, “We have discussed this matter within our agency,” and copied DRS Director Rahnee Patrick, Assistant General Counsel Thomas D. Mulcrone, and HHS Deputy Governor Grace B. Hou (A407; A408). Petitioners cite these entries in support of their later arguments about counsel involvement and the “non-involvement” findings (A459; A471). Petitioners cite that they relied on Webb’s representation and remained pro se (A104; A401).

Petitioners cite later appearances by government attorneys in the administrative appeal and Circuit Court proceedings, including: (1) IDHS Deputy General Counsel Rory Cannon, who entered a limited appearance to strike Petitioners’ written motions (A457; A829); (2) Assistant Attorney General Benjamin Usha, who appeared in Circuit Court (A14; A825; A831); and (3) Frank Bieszczat, Division Chief of the Civil Appeals Division (A14). Petitioners cite FOIA records regarding settlement-related discussions involving high-level officials (A630; A778). Petitioners characterize the resulting posture as an “inequality of arms” and cite this sequence as part of their argument that the forum has not functioned as a neutral, even-handed process in practice (A407; A459).

Petitioners cite internal communications and FOIA productions as reflecting what they characterize as dismissiveness toward their urgency (A778; A830). On July 30, 2025, Director Rahnee Patrick responded to Petitioners’ request for an update “given the extreme urgency of the housing situation” stating she could not provide an update, “the review is very thorough,” and “Thank you for your extraordinary patience” (A830; A842). Petitioners cite that Patrick and other senior officials had been copied on Petitioners’ “URGENT FORMAL APPEAL & REQUEST FOR EXPEDITED ADMINISTRATIVE REVIEW,” which warned of “imminent loss of secured housing by an August 4, 2025 move in deadline” and the resulting educational harm (A431; A432). Petitioners cite the subsequent lack of timely corrective action as part of their broader claims (A431; A432; A830; A945).

Director Rahnee Patrick’s email referenced a “very thorough” review and thanked Petitioners for “extraordinary patience” (A830; A842). Petitioners cite the record sequence—housing deadline passage, timeline drift beyond 60 days, and resets—in support of their argument that the process did not prevent the educational and housing harms they warned about (A431; A432; A67; A443; A444; A105; A441).

E. Employment, financial, and psychological harm

The record documents severe, ongoing, and compounding harm:

Employment and income. Mr. Feldsine works as an intensive special-education paraprofessional in a high school (A19). HR records show:

- all personal days exhausted (A16);
- sick days largely consumed (and not available for court) (A16);
- at least five docked days already recorded for November 3–7 (A16); and
- explicit warnings that future court-related absences will be unpaid (A16).

Because District 113 calculates salary by spreading annual work-year earnings over twelve months, each docked day lowers his bi-weekly pay and diminishes the baseline for summer/holiday pay. His net pay has already dropped from approximately \$1,059.72 every two weeks to \$896.26, with over-the-summer and holiday pay also affected (A104). After Petitioners emailed District 113 administrators on December 4, 2025 attaching the IDHS notice for the December 9 hearing, the Human Resources Manager responded that “a half day on December 9th will be excused” but that, because the hearing did not qualify as a sick day, “the time off will be docked” (A21). In a follow-up email, HR reported she had “just spoke to Jessica at the IDHS/Appeals area,” who “confirmed that you are to be available for the afternoon (not morning),” and explained that “the case prior to yours may run longer than expected... therefore you should be available for the entire afternoon from 1pm on” (A22). Petitioners cite these communications as reflecting that participation in IDHS hearings is repeatedly reducing Mr. Feldsine’s pay and that IDHS staff discussed scheduling details with his employer (A22; A830; A842).

HR communications state that the District requires formal court documentation mandating his presence to excuse absences (A20). The Hearing Officer, Karen Ottaviani-Roelle, refused to issue a summons or compulsory process, stating on the record that “there’s no mechanism under the rules” (A58; A459; A472).

Psychological harm (A105; A441). Medical records show stress-related physical illness and two psychological referrals for Mr. Feldsine, including to a psychiatrist for possible medication (A26; A104). Ms. Nguyen has psychological referrals related to anxiety and depression stemming from housing loss, educational disruption, and the prolonged appeals process (A22; A441).

Education and housing (A431; A441). Ms. Nguyen has lost an academic term; as Spring registration opens, Petitioners cite that each day of delay means fewer course options and increased risk of losing progression in a scarce program (A441; A442). She remains in overcrowded, unstable family housing because IDHS reversed its original housing commitment and because of the hardship-exception sequence described above (A105; A106; A441; A486).

These facts frame the legal analysis that follows (A937).

III. STANDARD OF REVIEW

Whether the exhaustion doctrine applies to undisputed facts, and whether an exception such as futility or inadequacy excuses exhaustion, are questions of law reviewed de novo. See *County of Knox v. Highlands*, 188 Ill. 2d 546, 551 (1999); *Castaneda v. Ill. HRC*, 132 Ill. 2d 304, 309 (1989).

IV. ARGUMENT

Illinois courts strictly enforce the exhaustion doctrine when the Administrative Review Law provides a remedy (A6; A11–13; A15). As the Supreme Court has repeatedly emphasized, exhaustion is a judge-made rule of judicial administration—not an inflexible jurisdictional bar—and it yields when the purposes of the doctrine (agency expertise, factual development, and the prospect of effective relief) cannot be served (A11–13; A937). Illinois courts have long recognized multiple exceptions where administrative review is inadequate, futile, or structurally misaligned with the relief sought (A252; A937; A944). Those exceptions include situations where: (1) the agency cannot provide an adequate remedy or it would be patently futile to seek relief there; (2) no factual issues are presented or agency expertise is not involved; (3) irreparable harm will result from further pursuit of administrative remedies; (4) the agency acts outside its statutory authority; and (5) the challenge is to a systemic policy or practice rather than an individualized administrative decision. See *Castaneda v. Ill. Human Rights Comm’n*, 132 Ill. 2d 304, 308–09 (1989); *Canel v. Topinka*, 212 Ill. 2d 311, 320–21 (2004); *Ill. Bell Tel. Co. v. Allphin*, 60 Ill. 2d 350, 358–59 (1975); *Bio-Med. Labs., Inc. v. Trainor*, 68 Ill. 2d 540, 551–52 (1977); *Pinkston v. City of Chicago*, 2022 IL App (1st) 200957, ¶¶ 51–53; *Slepicka v. Ill. Dep’t of Pub. Health*, 2014 IL 116927, ¶¶ 34–35; *County of Knox*, 188 Ill. 2d at 552–53; *Ardt v. Dep’t of Prof. Regulation*, 154 Ill. 2d 138, 145–46 (1992) (A12; A251–252; A254; A432; A937; A944–945).

Most recently, in *Pinkston v. City of Chicago*, the Supreme Court reaffirmed *Castaneda*’s framework, again listing these same exceptions and emphasizing that exhaustion is a rule of judicial administration that yields where the agency lacks authority to grant the relief sought, where only legal questions remain, or where the administrative remedy is otherwise inadequate. 2023 IL 128575, 26 (A12–13; A252; A300; A432). *Pinkston* thus confirms the governing framework while making clear that a litigant cannot avoid exhaustion merely by labeling a claim “systemic” or “class-wide” if the administrative body could, in principle, grant the relief at issue in

an individual case (A13; A937). This case fits squarely within those established exceptions (A252; A432; A945).

A. Exhaustion is excused because the tribunal has expressly disclaimed authority over Petitioners' core claims and requested relief.

The exhaustion doctrine does not require a party to pursue administrative remedies that are patently futile or beyond the agency's power to grant. *Castaneda*, 132 Ill. 2d at 309. As the Supreme Court explained in *Canel v. Topinka*, the doctrine exists to allow an agency to develop facts, apply its expertise, and potentially grant relief, but it does not apply where the administrative remedy is inadequate or futile, or where only issues of law are presented. 212 Ill. 2d at 320–21, 323–24. In *Canel*, the Court held that exhaustion was unnecessary where the State's position was fixed, no factual development was needed, and the remaining dispute turned on the meaning of the governing statute. *Id.* at 320–21.

That is precisely the situation here (A6; A11). Petitioners' case centers on: (1) violations of Title II of the ADA and § 504 of the Rehabilitation Act; (2) discrimination under the Illinois Human Rights Act; and (3) promissory estoppel and equitable relief relating to IDHS's written housing commitments and hardship determinations (A114–116). In this judicial action, Petitioners also seek remedies for due-process violations, including alteration of documents and denial of effective communication (A457; A458; A935).

The IDHS forum has repeatedly disclaimed authority over these matters:

- **Official notice.** The agency's hearing notice informs appellants they "cannot appeal... grievances filed under the Americans with Disabilities Act" and directs them instead to an ombudsman program that has no jurisdiction over VR appeals (A68; A91; A441).
- **On-record admission.** At the November 6 hearing, the Hearing Officer explicitly stated: "I have no authority... to make any rulings with regards to violations of the ADA... whether the rules are legal or not, all that is outside of this tribunal" (A57).
- **Written order.** In her October 30 order on pre-hearing motions, the Hearing Officer reiterated that for claims arising under "FOIA and other laws... remedy lies outside of this appeal," and that she is "only able to affirm, reverse, or remand the DRS determination on Grievant's benefits" (A459; A471).

Under *Canel*, exhaustion is excused where the agency "cannot provide an adequate remedy" because it lacks power to grant the relief requested. 212 Ill. 2d at 320–21 (A252; A471). Even a complete victory in the VR appeal—an award of services going forward—cannot:

- adjudicate responsibility for past ADA/IHRA violations and related due-process and record-integrity challenges now before the Circuit Court (A68; A252; A440; A458; A471);
- provide any meaningful remedy for the already-lost term of education and the unique housing opportunity that has already expired (A432; A441);
- adjudicate or remedy Petitioners' claims concerning evidence handling, FOIA compliance, and preservation of the administrative record, including relief sought through their motions for preservation, sanctions, and adverse inference (A471; A472; A947); or
- grant the equitable relief Petitioners seek on their promissory-estoppel, ADA, and IHRA theories (A252; A431; A471).

Moreover, Illinois courts have repeatedly stressed that exhaustion is unnecessary when the case presents a purely legal issue that does not depend on agency fact-finding or expertise (A12; A471; A945). See *Allphin*, 60 Ill. 2d at 358–59; *Canel*, 212 Ill. 2d at 320–21 (relying on *Landfill, Inc. v. Pollution Control Bd.*, 74 Ill. 2d 541, 550–51 (1978)) (A12; A57; A471). Whether IDHS must comply with Title II of the ADA in structuring VR services, and whether its written housing commitments and hardship determinations are enforceable under promissory estoppel, are legal questions for the courts—not “social-work” questions within the tribunal’s special expertise—particularly where the tribunal has already disclaimed authority to address them (A57; A68; A431; A444; A471).

That mismatch is especially stark for Petitioners’ federal disability claims (A12; A937). Title II of the ADA and § 504 of the Rehabilitation Act are routinely enforced directly in court, and federal courts have repeatedly recognized that public-services claims under those statutes do not depend on exhaustion of state administrative procedures that lack authority to adjudicate them (A68; A471; A937). See, e.g., *Perez v. Sturgis Pub. Schs.*, 598 U.S. 142, 147–48 (2023) (noting that non-IDEA claims under the ADA proceed without exhaustion of administrative remedies designed for different rights) (A12; A471). Requiring Petitioners to remain in a VR process that the Hearing Officer concedes cannot decide ADA or § 504 issues does not serve the purposes of exhaustion; it delays the judicial enforcement Congress contemplated for those statutes (A57; A68; A471; A937).

Where, as here, a party challenges the legality of the criteria and structures the agency uses—rather than only how it applied them in a particular case—Illinois courts treat that as a legal question for the judiciary, not a matter for administrative fact-finding (A12; A471; A937). See *Ardt*, 154 Ill. 2d at 145–46; *County of Knox*, 188 Ill. 2d at 552–53 (A12; A471; A937). Petitioners do not complain merely that IDHS miscalculated a service level; they challenge a structure in which ADA grievances are routed into a forum that expressly refuses to hear ADA claims and where written HUD-based promises are treated as unenforceable (A57; A68; A436; A937). That is a classic “question of law” beyond the core purpose of exhaustion under *Canel* and *Castaneda* (A12; A937).

Pinkston itself illustrates the line Petitioners do not cross (A6). There, the Supreme Court rejected an attempt to avoid exhaustion simply by recasting a parking-ticket dispute as a “systemic” challenge, because the hearing body was fully empowered to decide whether a particular ticket was valid and to grant the core relief sought—dismissal of that ticket—in each individual case. 2023 IL 128575, ¶¶ 39–40 (A6). The Court stressed that there is no free-standing “class action” or “systemic practice” exception to exhaustion where the administrative forum can, in principle, supply an adequate remedy. *Id.* ¶¶ 39–41 (A6; A459).

Here, by contrast, Petitioners are not asking the IDHS tribunal to correct a run-of-the-mill error within its authority (A471). They challenge structural and policy-level failures that the tribunal has expressly disclaimed the power to address: a written notice regime that routes ADA grievances into a forum that refuses to adjudicate ADA claims; a pattern of issuing “Reset Letters” to nullify hearings after adverse admissions; and the concealment and mishandling of a hardship-exception mechanism that the governing regulations require the Bureau Chief to administer (A68; A106; A443; A471). See 5 ILCS 100/10-25(b)(6); 89 Ill. Adm. Code §§ 510.40(a), 590.670(d), 590.680 (A111; A462; A465). As in *Canel* and *Bio-Medical Laboratories*, the core questions are whether the agency is acting within its statutory authority and whether the structure of its process can yield an adequate remedy at all—not whether it misapplied a valid rule in a single case (A12; A471). See *Canel*, 212 Ill. 2d at 320–21; *Bio-Med. Labs.*, 68 Ill. 2d at 551–52; *Bd. of Educ. of the City of Chicago v. Bd. of Trs. of the Pub. Sch. Teachers’ Pension & Ret. Fund*, 395 Ill. App. 3d 735, 744 (2009) (A12). Under those authorities, Petitioners’ structural and ultra vires challenges fall within the “authority” and “inadequate remedy” exceptions, not within the routine, fact-bound dispute to which Pinkston’s strict exhaustion rule applies (A12; A937; A945).

The August 26, 2025 “FW: IPE with Added Transportation Notes” email underscores this “circle of no relief” (A446). In that message, sent to Speth and expressly copying Director Patrick, Mr. Feldsine quoted and screenshot the hearing notice’s language that grievants “cannot appeal... grievances filed under the Americans with Disabilities Act” or “issues challenging the legality of the DRS rules,” and asked how ADA and legality issues could be addressed in a process that refuses to hear them, or alternatively, to be given “the correct appeals process” if the VR hearing was not it (A450; A451). IDHS never identified any such ADA grievance mechanism (A450; A451). The only “remedy” it offered was continued participation in a tribunal that, by its own notice and on-record admissions, disclaims authority over the very claims Petitioners now pursue in court (A57; A68).

That misdirection is reflected in Webb’s August 8, 2025 email, in which he told Petitioners that IDHS “will not further debate legal theories or interpretations” with them and instead would “present these issues to a Hearing Officer to adjudicate,” even though the hearing notice he was directing them into expressly states that grievants “cannot appeal... grievances filed under the Americans with Disabilities Act” and “issues challenging the legality of the DRS rules” (A68; A407). Two weeks later, in an August 26, 2025 email, Mr. Feldsine again attached that same hearing notice, quoted its ADA disclaimer verbatim, and asked Ms. Speth—while copying Director Patrick—how ADA issues could possibly be addressed “in a process that refuses to hear items relating to the legality of your organization’s rules... and grievances related to the

Americans with Disabilities Act” (A450–451). No one identified any alternative ADA grievance procedure in response (A451; A454). When combined with the Hearing Officer’s later on-record admission that she has “no authority... to make any rulings with regards to violations of the ADA... [and] whether the rules are legal or not,” this confirms that the administrative forum is structurally incapable of resolving the very legal issues Webb insisted must be taken there (A57; A471).

The Circuit Court’s order effectively traps Petitioners in a “jurisdictional limbo”: it insists they exhaust an administrative process to resolve ADA claims while the tribunal administering that process has expressly disclaimed jurisdiction over those same claims (A6; A12; A57; A471). That is precisely the scenario the Supreme Court addressed in *Canel* and the First District in *Pinkston*, and in both instances the courts held that exhaustion was not required (A12).

B. The administrative process has failed to comply with mandatory timeliness safeguards, causing concrete, irreparable harm, and reinforcing futility

VR proceedings are governed by timeliness safeguards (A67; A73). Federal regulations require an impartial hearing within 60 days of the request, absent a specific, written extension, and a subsequent written decision within 30 days after the hearing’s completion (A67; A73). See 34 C.F.R. § 361.57(e)(1), (e)(3)(ii). Illinois regulations mirror this structure (A67; A73): 89 Ill. Adm. Code 510.80(c), (g). The hearing notice provided to Petitioners likewise advises that “in no case shall the hearing be held later than 60 calendar days after receipt of the grievant’s request, unless the parties agree to a specific extension of time” (A67).

Here:

- Petitioners’ hearing request was submitted in July 2025 (A113; A459).
- Multiple hearings have been set, partially held, and then nullified by “reset” letters (A443; A444).
- A new hearing is scheduled for December 9, 2025—more than four months after the request—without any written agreement by Petitioners to extend the 60-day deadline and with no decision issued (A21; A67; A441).

This is not a minor scheduling slip (A441; A458). Ms. Nguyen has already lost at least one academic term and remains unable to enroll for the upcoming semester because the housing and transportation issues at the core of this case remain unresolved (A441; A458; A937). Each additional month narrows her course options as sections fill and increases the risk she will be removed from her program entirely (A400; A458). At the same time, Mr. Feldsine—a

public-school employee—must miss work for each hearing without any formal summons or court-ordered documentation, risking income and employment (A16; A18; A58; A104; A458).

By August 21, 2025, Petitioners had identified a feasible voucher-based accommodation modeled on the Rideshare Access Program (RAP) and had presented that mechanism directly to IDHS leadership and counsel (A52; A55; A56). IDHS nevertheless continued to insist that it had “no mechanism” to provide upfront transportation support—even after being shown that a sister Illinois transportation authority was already using a nearly identical Uber-voucher model for riders with disabilities (A48; A51; A56; A939). That refusal is consistent with the kind of “deliberate indifference” federal courts have found sufficient to establish a denial of reasonable accommodation under Title II of the ADA. See, e.g., *Duvall v. County of Kitsap*, 260 F.3d 1124, 1139–41 (9th Cir. 2001) (A939).

Illinois does not treat time limits as meaningless (A67; A73). Even where a procedural deadline is characterized as directory, courts grant equitable relief when delay causes prejudice or irreparable harm (A441; A458). Under the futility exception, the Supreme Court has held that exhaustion is excused “when it would be patently useless to do so.” *Beahringer v. Page*, 204 Ill. 2d 363, 378 (2003) (internal quotation marks omitted) (A12; A57; A471). Later decisions, including *Pinkston*, reiterate that formulation. See *Pinkston*, 2022 IL App (1st) 200957, 21 (A12). When a governmental body fails to follow its own deadlines, the remedy ceases to be “available” in any meaningful sense, and exhaustion is excused. See *Ford v. Walker*, 377 Ill. App. 3d 1120, 1126–27 (2007) (A21; A67; A459).

In practical terms, the sequence here operates as what Ford described as a “constructive denial” of administrative relief. See *id.* at 1126–27 (A12; A471). Petitioners requested a hearing; the agency set and partially held hearings; then it repeatedly nullified them with “reset” letters while allowing the 60-day safeguard to lapse and never issuing a decision (A67; A431; A443; A444; A459). The formal door to the process remains nominally open, but the only thing on the other side is more delay, more resets, and more uncompensated harm (A16; A441; A443; A444). That is the definition of a remedy that is no longer “available” in any meaningful sense for exhaustion purposes (A13).

Forcing Petitioners to proceed through a process that has already blown past its own 60-day safeguard, repeatedly “resets” hearings instead of issuing a decision, and requires Petitioners to re-incur lost wages and educational opportunities every time the tribunal starts over is the kind of “patently useless” exercise *Beahringer* describes (A16; A67; A441; A443–A444). It does not serve the purposes of exhaustion—allowing the agency to develop facts, apply expertise, and potentially grant relief. See *Canel*, 212 Ill. 2d at 320–21 (A12; A471). Instead, it multiplies the very harms—lost schooling, lost housing, escalating job jeopardy, and psychological deterioration—that Petitioners seek to prevent (A16; A104; A114; A441). Illinois courts have long recognized that exhaustion is not required where delay in the administrative process itself causes irreparable harm that a later victory cannot undo. See *Gell v. Hart*, 27 Ill. App. 3d 66, 72 (1975) (A12).

Even if the 60-day deadlines are deemed directory rather than jurisdictional, they still matter (A67; A73). Illinois courts recognize irreparable-harm and inadequate-remedy exceptions to exhaustion when lengthy administrative procedures expose an aggrieved party to ongoing damage without any effective interim relief (A12; A441; A458). See *Castaneda*, 132 Ill. 2d at 308–09; *Canel*, 212 Ill. 2d at 320–21 (A12). Here, the prejudice is concrete and un rebutted: educational loss, job jeopardy, housing instability, and documented psychological harm (A16; A104; A114; A441). A process that repeatedly resets itself, ignores its own 60-day safeguard, and allows a time-sensitive case to drift for months has ceased to function as a meaningful remedy (A21; A67; A443; A444; A459). It further confirms futility and the need for judicial intervention to prevent irreparable, non-compensable harm (A12; A57; A471).

Nor is there any adequate remedy at law for the harms already inflicted (A12; A16; A441; A458). Ms. Nguyen cannot recapture the lost term in a rare graduate program or resurrect the specific housing opportunity that expired in August 2025, and Mr. Feldsine cannot retroactively convert docked days and reputational damage with his public-school employer into whole employment simply by prevailing later in a VR appeal (A16; A18; A397–A398; A432; A441; A458). As in *Bio-Medical Laboratories*, where the threatened loss of Medicaid participation during an administrative process posed a risk of business destruction and “damages of uncertain magnitude,” the injuries here are not realistically compensable after the fact. See *Bio-Med.*, 68 Ill. 2d at 548–49 (A12). That combination of irreparable harm and an illusory administrative remedy places this case within the inadequacy and irreparable-harm exceptions recognized in *Castaneda* and *Canel* (A12; A57; A471).

The ongoing employment consequences confirm the harm is not theoretical (A16; A18; A104). While this appeal is confined to the record as it existed when the Circuit Court dismissed the case, subsequent employer correspondence reflects the same pattern already documented there: after Petitioners forwarded District 113 a December 9 hearing notice, the Human Resources Manager wrote that the necessary time off “will be docked” and then telephoned an IDHS appeals staff member, who “confirmed” that Mr. Feldsine must be available for the entire afternoon for that hearing (A21–A22). Because the Hearing Officer has refused to issue any form of summons or compulsory process, the District treats his attendance as discretionary and unpaid, even as IDHS insists on his availability on pain of adverse consequences in the appeal (A58; A61; A472). Each reset and new hearing date therefore forces Mr. Feldsine to choose between protecting his job and income and complying with IDHS’s escalating demands (A62; A443; A444). That is the sort of ongoing, non-compensable financial and employment harm *Beahringer*, *Ford*, and *Gell* recognize as supporting an irreparable-harm and futility exception to exhaustion (A12).

These timeliness failures are compounded by basic failures of language access and representation that, in practice, made the administrative remedy unintelligible to Ms. Nguyen and inaccessible through her chosen representative (A440; A441). The Illinois Administrative Procedure Act requires that hearing notices include a multilingual enclosure, including Vietnamese, notifying recipients of their right to interpretive assistance. 5 ILCS 100/10-25(b)(6). IDHS’s own VR rule obligates DHS–DRS to make appellants aware of their appeal rights “in a language that is understandable to the grievant” (A465). 89 Ill. Adm. Code § 510.40(a). Yet Ms.

Nguyen—legally blind and limited English proficient—received no notices in Vietnamese, and when Petitioners objected on the record, the Hearing Officer responded that “there’s nothing in the administrative rules” requiring Vietnamese notices (A58; A440).

At the same time, IDHS addressed dispositive notices and reset letters solely to Ms. Nguyen via printed matter delivered by the postal service (A402; A443; A444). In those physically printed and mailed documents, Mr. Feldsine was referenced only in a “CC:” footer and did not receive separate copies despite his appointment under 89 Ill. Adm. Code § 510.40(c) and federal VR regulations protecting the right to representation (A396; A402; A443; A444). See 34 C.F.R. § 361.38; 89 Ill. Adm. Code § 510.40(c) (A462; A465). This pattern also conflicts with ADA regulations requiring “appropriate auxiliary aids and services” and “effective communication.” See 28 C.F.R. § 35.160 (A448; A938). That asymmetrical approach to “confidentiality” is underscored by IDHS appeals staff later speaking directly with Mr. Feldsine’s public-school employer about the scheduling and scope of his pending hearing—confirming his status as an appellant and narrowing the time he “needed” to be absent—while Director Patrick had previously invoked the Rehabilitation Act as a reason she could not provide updates to him as Ms. Nguyen’s appointed representative (A22; A830). A process that communicates in a language the claimant cannot read and sidelines the representative she relies on to understand and respond cannot be considered an “adequate remedy” under *Castaneda* and *Canel*; in practical terms, it is “patently useless” within the meaning of *Beahringer* (A12; A440).

C. Structural conflicts, “reset” practices, and record-integrity failures undermine any reasonable expectation of a fair result

Exhaustion is also excused where the administrative process is so structurally compromised or biased that a fair hearing cannot be expected (A12; A471; A947). See *Goral v. Dart*, 2020 IL 125085, 43 (recognizing “objective and undisputed evidence of administrative bias” as a basis for bypassing agency process); *In re Murchison*, 349 U.S. 133, 136 (1955) (due process violated where a structure creates a “probability of unfairness”); *Abrahamson v. Dep’t of Prof. Regulation*, 153 Ill. 2d 76, 95–96 (1992) (due process violated where commingling creates an “intolerably high” risk of bias); *Scott v. Dep’t of Commerce & Cmty. Affairs*, 84 Ill. 2d 42, 54–55 (1981) (impartial decisionmaker is a basic due-process requirement) (A12; A945).

Several features of this record raise serious concerns:

“Reset” letters following adverse admissions. IDHS has issued at least three “Reset Letters” in this appeal (A443; A444). The first issued shortly after sworn testimony that Petitioners’ hardship request had been “altered and sent back” internally (A443; A458). The second followed the Hearing Officer’s on-record admission that she lacked authority to rule on ADA violations (A57; A444). The third followed Petitioners’ assertion that the proceeding had exceeded the 60-day timeframe (A21; A67; A441). These were not routine continuances (A443; A444). Each Reset Letter purported to nullify an existing hearing record after admissions adverse to the agency, supporting serious concerns that the process is being used to erase damaging admissions rather than to develop a fair, reviewable record (A441; A937).

Dual-role conflict at the top of the tribunal. Dual-role conflict at the top of the tribunal. The Bureau of Administrative Hearings is overseen by Chief ALJ Richard Madison, who simultaneously serves as a Deputy General Counsel for IDHS, the respondent agency (A476; A517; A936). The same Office of General Counsel has directed FOIA responses and participated in litigation strategy and legal guidance in this very matter (A475; A503; A507; A517). That commingling—an adjudicatory supervisor embedded in the agency’s litigation chain of command—creates, at minimum, the “probability of unfairness” condemned in *Murchison* and the “intolerably high” risk of bias identified in *Abrahamson* (A945). Due process requires an impartial decisionmaker in administrative hearings. *Scott*, 84 Ill. 2d at 54–55 (A945).

FOIA and record-production conduct. The Office of General Counsel has admitted issuing multiple “improper” extensions in response to Petitioners’ FOIA requests and has at least once denied the existence of records later shown to exist (A475; A486; A891; A931). That denial concerned Petitioners’ August 27, 2025 FOIA request for pre-hearing rulings issued by the Bureau of Administrative Hearings. OGC initially answered on August 29 by stating it had been “unable to locate any responsive records” and implying that such rulings did not exist (A931; A932). Petitioners responded the same day with a “Formal Notice of Fraud,” attaching the public file from *Stoller v. IDHS*, which contained precisely the type of written pre-hearing ruling they had requested—an order from “DHS.HSPApeals” dated February 9, 2024 (A909; A915). Only after Petitioners produced the *Stoller* materials did OGC issue an October 7 “Supplemental Response,” retracting the earlier “no records” statement and producing additional documents (A891). Petitioners then asked the Circuit Court, through their Motion for Limited Findings, to make findings on this sequence and to require preservation of the associated emails and ESI (A889). As of the time Petitioners sought circuit-court relief, Petitioners still had not received official audio recordings or transcripts of hearings where critical admissions were made before resets (A462; A947). Given this history and the pattern of resets following adverse testimony, Petitioners had a reasonable fear that recordings were being withheld or were at risk of loss (A938; A976; A979). That record-integrity risk bears directly on whether the administrative process can produce a reliable record for this Court’s eventual review (A937).

Control of subpoenas by the agency’s litigation arm. On August 22, 2025, Petitioners submitted formal written subpoena requests for key witnesses and documents pursuant to 89 Ill. Adm. Code § 508.120, expressly explaining that the evidence was needed in advance of the September 2 hearing to comply with the Bureau’s three-day evidence-submission rule (A491). That email was sent to the Bureau of Hearings address and to senior officials in the Governor’s Office and IDHS, including Director Patrick and Deputy General Counsel Mulcrone (A491). The following Monday, Mulcrone forwarded the requests internally to other Office of General Counsel attorneys, including General Counsel Amy Crawford, for handling, and Crawford separately emailed Madison and other OGC staff about this same active appeal, “confirming/reiterating we will not be discussing the merits” (A573; A609). Yet no subpoenas issued, and when the matter later reached Hearing Officer Ottaviani-Roelle, she announced she would not subpoena senior officials she had deemed “not involved,” even in the face of these earlier requests and emails copying them (A470–A471). This sequence shows that decisions about compulsory process were effectively filtered through the same litigation office Petitioners had accused of misconduct, rather than through a neutral adjudicator (A476–A477; A944–A945).

The internal inconsistency between the September 2 transcript and the later written order illustrates the point (A457; A459). The transcript and recording (A120) and following show that the September 2 hearing went forward on the scheduled date, that the motion to vacate was not granted on the record, and that substantive testimony was taken before IDHS later issued a “Reset Letter” purporting to nullify the entire proceeding (A120–A398; A443; A457; A458). Yet the subsequent order asserts that the motion to vacate “was granted on the record” and that the matter was simply continued to allow additional preparation time (A460; A461). When the written account of events does not match the hearing transcript itself, Petitioners’ doubts about the integrity and reliability of the administrative record are not speculative; they are grounded in the four corners of the record this Court is being asked to rely upon (A457; A461).

Misleading “help” referrals. The hearing notice continues to direct VR customers like Ms. Nguyen to an ombudsman program with no jurisdiction over their type of appeal, while simultaneously acknowledging regulatory rights (including the 60-day hearing timeframe) that are not being honored in practice (A79; A87; A89; A93; A440; A466). For a legally blind LEP claimant, being repeatedly shunted to entities that cannot help is not a harmless error; it is another barrier to effective participation in the process (A79; A87; A93; A440).

These structural problems also trigger the “statutory authority” and “inadequate remedy” exceptions recognized in *Bio-Medical Laboratories and Slepicka* (A12; A470–A471). In *Bio-Medical Laboratories v. Trainor*, the Supreme Court held that because an administrative agency is a “creature of statute,” any “power or authority” it claims must find its source in the statute that created it. 68 Ill. 2d at 551–52 (A12; A57; A471). In *Slepicka*, the Court reiterated that agencies possess no general or common-law powers and must strictly comply with statutory and regulatory grants of authority. 2014 IL 116927, ¶¶ 34–35 (A12; A471). Where a plaintiff alleges that an agency has exceeded—or refused to exercise—authority conferred by its governing statutes and rules, courts will entertain direct actions to restrain that conduct without insisting on exhaustion. *Bio-Med.*, 68 Ill. 2d at 551–52 (A12; A58; A104; A441; A472).

Here, Petitioners allege that IDHS:

- refused to apply the hardship-exception mechanism mandated by 89 Ill. Adm. Code § 590.680 until after Ms. Nguyen’s housing opportunity was irretrievably lost, and then refused to honor an approved exception (A36; A106; A442; A938);
- refused to issue any form of summons or compulsory process while simultaneously insisting that Petitioners appear for repeated hearings on pain of job jeopardy (A16; A58; A61; A104; A472); and
- employed a “reset” mechanism that does not appear in the governing regulations and repeatedly nullified hearings after adverse admissions, with no express standards, time limits, or record-integrity safeguards (A441; A443; A444; A458; A937).

Those allegations go not to the correctness of a single benefits determination, but to whether the agency is exercising—or refusing to exercise—authority in a manner consistent with its statutory and regulatory framework (A12; A57–A58; A471–A472). Under Bio-Medical and Slepicka, that kind of ultra vires challenge does not belong in a closed, self-policing administrative loop (A476–A477; A944–A945).

Finally, as Pinkston and Board of Education emphasize, exhaustion doctrine is tightly linked to the Administrative Review Law’s concept of an “administrative decision” rendered “in a particular case” (A12). Pinkston, 2022 IL App (1st) 200957, ¶¶ 52–53 (quoting 735 ILCS 5/3-101 and discussing Bd. of Educ., 395 Ill. App. 3d at 744) (A12; A937). When a plaintiff alleges a systemic practice—there, a “routine practice” of mis-issuing tickets; here, a routine practice of disavowing ADA jurisdiction, misdirecting ADA grievances, and nullifying hearings through serial resets—the judicial task is to review and, if necessary, enjoin that broader practice (A57; A441; A443–A444; A471; A485–A486; A935). The limited, record-bound functions of the hearing officer (to “affirm, reverse, or remand” a single VR determination) cannot address that system-level problem (A57; A471). In that posture, the Administrative Review Law does not provide an adequate remedy, and the exhaustion doctrine does not apply (A12; A937–A938).

While this appeal is formally confined to the record as it existed when the Circuit Court dismissed the case, this Court may take judicial notice of the Agency’s own subsequent public acts to confirm the pattern already before it (A6; A12). On November 23, 2025—just days after dismissal—IDHS issued yet another “Reset Letter” purporting to nullify the November 17 proceedings (A443; A444). That post-dismissal reset is not offered as “new evidence” on the merits, but as confirmation that the serial nullifications the Circuit Court already saw were not aberrations; they reflect a repeated pattern that delays finality and frustrates meaningful review in the very way that undercuts the purposes of the exhaustion doctrine (A12; A441; A937).

D. The Circuit Court erred by dismissing on exhaustion grounds without ruling on motions that went directly to the adequacy and integrity of the administrative remedy

The Circuit Court did not simply require exhaustion (A11-12). It dismissed the action and marked the case “closed” without adjudicating Petitioners’ pending motions for temporary restraining order and case management, Rule to Show Cause and preservation, disqualification, sanctions, and adverse inference (A13; A437; A883; A944; A947). Those motions were not collateral skirmishes; they went directly to the core questions this Court must decide—whether the administrative remedy is legally adequate and whether exhaustion is futile in light of structural bias, record-integrity concerns, and ultra vires conduct (A12; A937-938; A944-945; A947-948).

Illinois courts repeatedly emphasize that exhaustion is a rule of judicial administration, not an inflexible jurisdictional bar (A12; A940). Castaneda, 132 Ill. 2d at 308–09 (A940). The doctrine yields where the agency lacks authority to resolve the dispute, where constitutional or structural challenges are raised, or where the remedy is otherwise inadequate or futile (A12; A937; A945).

See Canel, 212 Ill. 2d at 320–21; County of Knox, 188 Ill. 2d at 552–53; Goral, 2020 IL 125085, ¶¶ 41–43 (A12; A940-941; A945).

Petitioners’ unaddressed motions squarely invoked those exceptions (A6). The TRO and Rule to Show Cause/preservation motions asked the Circuit Court to halt further “reset” practices that were nullifying hearing records after adverse, on-the-record admissions; to require preservation and production of audio recordings and other evidence; and to prevent further alteration of hardship-exception paperwork and related records (A437; A441; A443-444; A458; A887; A890; A937-938; A947-948). The disqualification motion challenged the tribunal’s structural integrity by identifying the Chief ALJ’s dual role as Deputy General Counsel and the commingling of adjudicatory and litigation functions within IDHS—precisely the kind of structural illegality and intolerable risk of bias that Goral, Abrahamson, and Murchison hold cannot realistically be cured from within the agency itself (A476-477; A937; A944-945). See Abrahamson, 153 Ill. 2d at 95–96; Scott, 84 Ill. 2d at 54–55; Murchison, 349 U.S. at 136 (A945).

Likewise, the sanctions and adverse-inference motions alleged that IDHS and its counsel withheld and mischaracterized FOIA records, altered a hardship-exception form, and failed to provide official hearing recordings despite repeated requests—conduct that bears directly on whether the administrative forum can produce a reliable record for eventual judicial review (A32; A120; A458; A486; A894; A947-948). Under *Bio-Medical Laboratories and Slepicka*, when a plaintiff alleges that an agency is acting outside or in defiance of authority conferred by its governing statutes and regulations, courts may intervene without forcing the plaintiff to remain within a closed administrative loop (A12; A471; A937-938; A940). See *Bio-Med.*, 68 Ill. 2d at 551–52; *Slepicka*, 2014 IL 116927, ¶¶ 34–35 (A12; A471; A940).

By dismissing on exhaustion grounds without ruling on any of these motions, the Circuit Court treated exhaustion as an absolute bar and refused to engage the very factors Illinois law recognizes as exceptions: lack of authority, structural bias, ultra vires conduct, and record-integrity failures (A6; A11-12; A57-58; A441; A458; A471-472; A476-477; A945). In doing so, it placed Petitioners in the “jurisdictional limbo” described above—sending them back into a process whose legality, neutrality, and adequacy they had specifically and procedurally challenged, while leaving those threshold challenges unresolved (A12-13; A937-938; A944-945; A947-948).

At minimum, this was reversible error (A6; A13). Even if some aspects of case management are reviewed for abuse of discretion, the court erred as a matter of law by dismissing on exhaustion grounds without addressing motions that go directly to recognized exceptions (A11-12; A437; A889; A944; A947). Even if this Court concludes that some measure of administrative process must continue, the Circuit Court should not have closed the case without adjudicating motions seeking preservation of evidence, definition of the tribunal’s lawful authority, and correction of structural defects (A57-58; A441; A458; A471; A476-477; A889; A944-945; A947-948). Those issues go to the adequacy of any future administrative remedy and to Petitioners’ ability to obtain meaningful judicial review later (A12; A441; A471-472; A937-938; A948). The proper course is reversal and remand with directions that the Circuit Court (1) vacate its dismissal, and (2) rule on Petitioners’ outstanding motions for TRO and case management, Rule to Show

Cause and preservation, disqualification, sanctions, and adverse inference in light of the exhaustion exceptions articulated in Canel, County of Knox, Goral, Bio-Medical, Slepicka, and related precedent (A13; A437; A889; A944; A947).

V. CONCLUSION

The exhaustion doctrine is meant to respect administrative expertise and conserve judicial resources, not to trap litigants in a forum that openly disclaims authority over their claims, ignores its own safeguards, and erodes the integrity of the record. (A12; A441; A458; A471).

Here, the undisputed facts show:

1. The tribunal has expressly stated it cannot adjudicate Petitioners' core ADA/IHRA/promissory-estoppel claims or grant the requested equitable relief. (A57; A471-472; A938).
2. The case has exceeded mandatory timeliness protections, causing concrete educational, economic, and psychological harm. (A67; A104-105; A438; A441-442).
3. Structural conflicts, serial resets, language-access and representation failures, and record-integrity problems undermine any expectation of a fair and reviewable hearing. (A58; A105; A441; A443-444; A458; A476; A485-486; A517; A935; A948).

Under Castaneda, Canel, Beahringer, Bio-Medical, Pinkston, Slepicka, Goral, and related precedent, Petitioners were not required to exhaust such a process before seeking judicial protection. (A12; A937; A940).

For these reasons, Petitioners respectfully request that this Court:

1. Reverse the Circuit Court's November 14, 2025 order dismissing their complaint for failure to exhaust administrative remedies. (A6; A11; A13).
2. Hold that the futility/inadequacy exception applies on this record. (A12; A940).
3. Remand the case to the Circuit Court for a hearing on the merits of Petitioners' request for injunctive and related relief, including rulings on all previously filed motions (for TRO and case management, Rule to Show Cause and preservation, disqualification, sanctions, and adverse inference) that were not addressed. (A6-7; A13; A437; A476; A883; A936; A947).
4. Grant such other and further relief as this Court deems just and appropriate to prevent further irreparable harm and to ensure meaningful judicial review. (A938).

